

Master Strategic Collaboration and Intellectual Property Protection Agreement

Discussion redline prepared for March 12, 2026 meeting

Legend:

~~Deleted text~~

Added text

This Agreement is made between Service Performance, Inc. dba Revenue-IQ ("Consultant"), a Washington State corporation, and ~~[Partner Name] ("Developer"), a New Jersey entity.~~ Boss Key LLC ("Developer"), a New Jersey limited liability company. Together, they are the "Parties."

1. The Purpose

~~The Parties are joining forces to create an AI-augmented proposal writing system. Consultant provides the specialized sales methodology and historical data; Developer provides the AI technical architecture. This document ensures that while the Parties share knowledge, they do not lose ownership of their core business assets. The Parties are exploring a collaborative AI-assisted proposal, capture, qualification, and workflow offering. Consultant provides sales methodology, commercial positioning, and historical insights; Developer provides technical architecture, workflow implementation, and delivery tooling. This document should protect each Party's core business assets while supporting a practical working partnership.~~

The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, fiduciary relationship, employment relationship, or exclusivity arrangement. Project-specific scope, deliverables, fees, timelines, acceptance criteria, and security requirements will be documented in one or more written statements of work signed by both Parties.

2. IP Ownership: "What's Mine stays Mine"

- **Background IP:** Each party keeps full ownership of any technology, data, methods, or templates they owned before this project started. For clarity, Developer Background IP includes source code, software, system architecture, prompts, prompt libraries, templates, workflows, schemas, connectors, evaluation assets, analytics, documentation, and generalized proposal/capture operating methods, whether existing before this project or developed outside the use of Consultant Confidential Information.
- **Revenue-IQ Property:** Consultant's Background IP specifically includes its proprietary proposal templates, win-loss data, and "Revenue-IQ" writing methodologies. Developer Background IP specifically includes Boss Key's technical platform, reusable proposal operations, automation logic, implementation workflow, and delivery tooling.
- **The Limited License:** Consultant grants Developer a ~~temporary limited~~, non-exclusive license to use its methodology only for this project and any signed SOWs. ~~Developer is strictly prohibited from using Consultant's methodology to build tools for any other client or for its own general-purpose AI models. Developer may not use Consultant materials outside the Purpose, but this restriction does not limit Developer's independently developed tools, residual know-how, or generalized methods that do not disclose Consultant Confidential Information.~~

- **No Implied Transfer:** Except as expressly stated in a signed SOW, neither Party receives any ownership interest in the other Party's Background IP.

3. AI Training and "Digital Shredding"

- **Training Data Ownership:** As between the Parties, Consultant owns all data provided to train the AI. Developer shall not "ingest" this data into its general-purpose neural networks for the project. Developer shall not use Consultant Confidential Information to train or fine-tune any public or shared AI model without Consultant's prior written consent.
- **The Fine-Tuned Model:** Any AI model that is "fine-tuned" or customized using Consultant's data is the exclusive property of the Consultant. Any project-specific model weights, retrieval indexes, or datasets created exclusively from Consultant Confidential Information for a signed SOW will be treated as Consultant project artifacts upon full payment; provided, however, that Developer retains all rights in its underlying platform, code, prompts, workflows, evaluation assets, logs, backups, and de-identified telemetry.
- **Mandatory Deletion:** Within 10 days of this Agreement ending, Developer must perform "Digital Shredding"—the permanent deletion of the fine-tuned model and all associated databases. Developer must provide a signed certificate confirming this has been completed. Upon written request or termination of this Agreement, Developer will delete Consultant Confidential Information and project-specific artifacts from its active systems within a commercially reasonable period, excluding ordinary-course backups, immutable logs, security records, and materials required to be retained by law or professional obligation. Developer will provide written confirmation upon reasonable request.
- **Confidentiality Baseline:** Each Party will use the other Party's Confidential Information only for the Purpose, disclose it only on a need-to-know basis to bound personnel or advisors, and protect it using at least reasonable care.

4. Client Protection (Non-Circumvention)

- **Anti-Bypass Rule:** Developer agrees not to "bypass" the Consultant to work directly with any client introduced by the Consultant. This applies during the project and for 24 months after it ends. Developer agrees not to knowingly solicit, for substantially similar services, any client first introduced by Consultant and with whom Developer had direct material contact through work under a signed SOW. This restriction applies during the project and for 12 months after it ends, and does not apply to pre-existing relationships, public procurement responses, general marketing, or independent inbound opportunities not arising from misuse of Consultant Confidential Information.
- **The Referral Fee:** (Washington Compliance): To comply with Washington law (RCW 49.62), if a client independently approaches the Developer, the Developer may accept the work only if they pay the Consultant a recurring "Referral Fee" equal to 25% of all revenue earned from that client for two years. If Consultant expressly authorizes a direct engagement with an introduced client, any referral or revenue-share arrangement will be separately agreed in writing. Unless otherwise agreed, any such referral fee will be a one-time fee tied to fees actually received from the initial engagement.
- **The Circumvention Penalty:** If Developer intentionally goes behind Consultant's back to poach a client, Developer must pay Consultant a penalty equal to 100% of the revenue earned from that client as "liquidated damages." The same introduced-client protection principles will apply in reverse to clients first introduced by Developer through work under a signed SOW.

5. Staff Protection (Non-Solicitation)

Neither party will ~~attempt to hire~~ knowingly and directly solicit for employment the other party's employees or contractors during this deal or for 12 months after. This restriction does not apply to general recruiting not targeted at such person or to unsolicited inquiries. If a party hires away a staff member, they must pay the original employer a "Recruitment Fee" equal to that worker's full annual salary. Any placement or transition fee will apply only if separately agreed in writing.

6. Ownership of Work (AI Outputs)

Developer ~~irrevocably assigns all rights in the "Outputs" (the actual proposals and reports generated by the AI) to the Consultant. This ensures the Consultant has the legal right to sell and deliver these works to its clients without a "cloud" on the title.~~ assigns to Consultant, upon full payment, ownership of final client-specific proposals, reports, and other deliverables expressly created for Consultant or Consultant's client under a signed SOW. Developer retains all underlying Background IP, including platform software, prompts, workflows, templates, schemas, libraries, documentation, and improvements used to create those deliverables. No transfer applies to open-source software, third-party licensed materials, or pre-existing Party materials except as expressly stated in a signed SOW.

7. Accuracy and Liability

- **Human-in-the-Loop:** Consultant agrees to review all AI-generated drafts for "hallucinations" or errors before sending them to a client unless a signed SOW expressly assigns a different final approval role.
- **Technical Indemnity:** ~~Developer will defend and pay for any legal claims if the AI system itself causes a data breach or infringes on a third party's patent or copyright.~~ Developer will defend third-party copyright or trade secret claims arising from Developer-created deliverables under a signed SOW, excluding claims arising from Consultant data, templates, instructions, required third-party tools, later modifications, or out-of-scope use.
- **Consultant Materials Indemnity:** Consultant will defend claims arising from Consultant-provided data, templates, claims, or instructions, including claims that Consultant lacked the right to provide or use them for the project.
- **Liability Cap:** Except for confidentiality breaches, willful misconduct, gross negligence, payment obligations, or indemnity obligations, neither Party will be liable for indirect or consequential damages, and each Party's aggregate liability will be capped at the amounts paid or payable under the applicable SOW giving rise to the claim.

8. Legal Standards and Disputes

- **Choice of Law:** ~~This Agreement is governed by Washington State Law.~~ This Agreement is governed by the laws of New Jersey, or such other mutually agreed state as the Parties confirm in the final draft.
- **Dispute Resolution:** ~~If a problem arises, senior executives from both sides must meet in person to try to settle it. If they cannot, the dispute will go to professional mediation in [City, County], Washington. If a problem arises, senior business principals from both sides will first confer in good faith to try to settle it. If they cannot, the dispute will go to remote professional mediation before litigation, except that either Party may seek injunctive relief for misuse of Confidential Information or intellectual property.~~
- **Project Documents:** Signed SOWs, security addenda, and written change orders may supplement this Agreement and will control for project-specific scope, deliverables, fees, timelines, acceptance criteria, and security requirements.

Signatures

Service Performance, Inc. dba Revenue-IQ

By: _____

Name: _____

Date: _____

~~{Partner Name}~~ **Boss Key LLC**

By: _____

Name: Timothy Charles Semenza

Title: Sole Member

Date: _____